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By WILLIAM S. WHITE Special to THE NEW YORK TIMES.

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Civil Rights Congress Delegates
Visit White House, Argue
He Can Kill Indictments

By WILLIAM S. WHITE
Special to THE NEW YORK TIMES.

WASHINGTON, Sept. 22—Representatives of the Civil Rights Congress, an organization named by the Attorney General as subversive, demanded today that President Truman "dismiss" indictments against twelve Communist leaders for conspiracy to overthrow this Government.

Simultaneously, they announced "a national drive to add the signatures of 250,000 rank and file union members" to a petition making this unusual call on the President to set aside the work of a New York grand jury that returned the indictments on July 20.

Asked on what constitutional

ground Mr. Truman could take such a step, even if he chose, one of the leaders of the delegation, Joseph Flanagan, said:

"We believe the President has the executive power to dismiss these indictments. We believe he could use his good offices to see that they are dismissed."

Mr. Flanagan and three of his associates in the delegation, which came from New York, talked with reporters in the offices of Representative Vito Marcantonio, American Labor, of New York, after they had called at the White House and Justice Department.

Electronics Official Testifies

In the meantime, a House Subcommittee on Un-American Activities held another closed session in its inquiry into alleged wartime atomic espionage in behalf of the Soviet Union.

The day's only witness was Samuel J. Novick of New York, president of the Electronics Corporation of America. His testimony was termed "highly important corroborative evidence" by the subcommittee chairman, Representative John McDowell of Pennsylvania.

The delegates for the Civil

Rights Congress visited Philleo Nash, a White House aide, and Raymond Whearty, an official of the internal security branch of the Justice Department.

To each, they presented a manifesto, which they said had been signed by "1,100 trade union leaders from throughout the country," and which ended as follows:

"We call upon you, Mr. President, to dismiss the indictments of the twelve Communist leaders and to uphold the constitutional right of the American voters to be the sole judges of the program of any political party—including the Communist party.

"We also call on you to order the indictment of those who use legalized force and violence in an effort to destroy labor's right to organize, bargain collectively, and strike.

"We call on you to prosecute those guilty of anti-labor police brutality and lynch violence against the Negro people."

Legal Question Raised

Asked what his response to this had been, Mr. Nash said:

"I told them that I would convey their request to the President. I

made no comment on behalf of the President."

Mr. Flanagan, when he was interrogated by reporters as to the phrase "we call upon you, Mr. President, to dismiss the indictments," replied:

"I am not sure of the legal aspects, but if it is in here (in the petition) it is correct."

Thomas G. Buchanan, a local official of the Civil Rights Congress, said that he was not "competent to discuss the legal aspects," but added:

"In my opinion the law itself (the act under which the indictments were drawn) is unconstitutional and so the indictments could probably be dismissed by the President."